

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

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KEESHA ERBY,

Plaintiff,

-against-

SUMMONS

Basis of Venue:
Place of Incident

THE CITY OF NEW YORK, NYPD DETECTIVE
PATRICK DALY (Shield # 1563),
and NYPD OFFICERS JOHN and JANE DOE #'s 1-12
(names and numbers unknown at this time), and
Other Unidentified members of the New York City
Police Department,

Plaintiff Designates
New York County
as the place of trial

Defendants.
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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 26, 2021

Respectfully submitted,

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.

40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 1000
NYPD DETECTIVE PATRICK DALY (Shield # 1563), Narcotic Borough Manhattan North, 1 Police
Plaza, Legal Department, New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

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KEESHA ERBY,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE
PATRICK DALY (Shield # 1563),
and NYPD OFFICERS JOHN and JANE DOE #'s 1-12
(names and numbers unknown at this time), and
Other Unidentified members of the New York City
Police Department,

Defendants.

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Plaintiff **Keesha Erby**, by her attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein, alleges
upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and the rights secured by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution the laws of the State of New York. Plaintiff was unlawfully stopped, searched, and arrested by the defendants. Plaintiff was deprived of her federal constitutional rights, state constitutional rights, and common law rights when the individually named police defendants subjected her to, among other things, assault, false arrest, unlawful search and seizure, negligence, gross negligence, intentional and negligent infliction of emotional distress, and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory and punitive

damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Plaintiff is a resident of the New York County, State of New York.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.
4. NYPD DETECTIVE PATRICK DALY, assigned Shield # 1563, who is employed with the Narcotic Borough Manhattan North division, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. NYPD DETECTIVE PATRICK DALY (Shield # 1563) is being sued in his individual capacity and official capacity.
6. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
8. New York Police Officers John and Jane Doe #'s 2-12 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officers John and Jane Doe #'s 2-12 are being sued in his/her individual capacity and official capacity.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and

authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
12. Plaintiff in furtherance of her State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
14. The City of New York held a 50(h) hearing examination of Plaintiff on April 9, 2021.

STATEMENT OF FACTS

15. On November 20, 2020 at approximately 5:00 a.m. inside of 445 East 120th Street, Apartment 10B in New York County, New York, numerous police officers in plainclothes from the Narcotic Borough Manhattan North unit, and other unknown police commands, including upon information and belief, defendant NYPD Detective Patrick Daly (Shield # 1563) and P.O. John and Jane Does #1-12, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff.

16. On November 20, 2020 at approximately 5:00 a.m., Plaintiff was in the apartment she has lived in for over twenty years. She had just woken up to use the bathroom. Her nine-year-old grandson was asleep in a bedroom in the apartment. At that time, Plaintiff heard a drilling sound, followed by a very loud “boom” sound, and was immediately confronted with ten to fifteen defendant NYPD officers in plainclothes, many wearing body armor, coming through her now-removed front door. Defendant NYPD officers, including defendant NYPD Detective Patrick Daly (Shield # 1563) pointed guns directly at Plaintiff’s head and told her to lie on the ground.
17. Plaintiff immediately informed defendant NYPD officers that she would comply, and that her grandson was asleep in a back bedroom, and that he was tall for his age. Defendant NYPD officers did not verbally respond to Plaintiff’s warning about her grandson. Instead, several members of the force immediately ran towards said room. Plaintiff’s grandson was then removed from the bedroom by defendant NYPD officers and placed with Plaintiff in her bathroom.
18. Defendant NYPD officers continued to point a gun at Plaintiff’s head for approximately three minutes. Defendant NYPD officers then handcuffed plaintiff. Plaintiff’s grandson witnessed all of this extreme and outrageous conduct.
19. Defendant NYPD officers informed Plaintiff they were there to search the house for narcotics, and Plaintiff informed them there were no narcotics in the house. Defendant NYPD officers also informed Plaintiff they had a warrant for the search, but refused to allow Plaintiff to see or examine it despite her request to do so.
20. Plaintiff, handcuffed, was forced by defendant NYPD officers to remain in her bathroom and to sit on the toilet therein. Her grandson was forced to sit on her lap. Defendant NYPD officers, including defendant NYPD Detective Patrick Daly (Shield # 1563) threatened Plaintiff and her grandson by stating they would take away the grandson’s cell phone, school laptop, tablet, and

other personal items unless Plaintiff's grandson revealed the contents of his cell phone to defendant NYPD officers. Upon information and belief, defendant NYPD officers did not have a separate, required search warrant for any phone or other electronic device in the apartment.

21. During the course of defendant NYPD officers' raid of Plaintiff's home and illegal detention of Plaintiff and her grandson, Plaintiff was further disturbed by the fact that, although this raid took place during a peak period of the Covid-19 pandemic, none of the numerous defendant NYPD officers present were wearing masks. Further, when Plaintiff expressed her concern about this, noting particularly that her own brother had died from Covid-19 not long before, defendant NYPD officers mocked Plaintiff by stating that they were, in sum and substance, "invincible."
22. Approximately five hours after defendant NYPD officers violently removed Plaintiff's front door, pointed a gun at her head, placed her in handcuffs and detained her in her bathroom, Plaintiff was searched and then removed from her apartment by defendant NYPD officers and taken to the 25th Precinct. At some point before she was removed from her home, a family member picked up Plaintiff's grandson.
23. At the 25th Precinct, Plaintiff was told that her entire apartment was being searched. Plaintiff was intermittently handcuffed or placed in a holding cell while illegally confined inside the precinct. At some point during this detention, she was finally shown a copy of the search warrant, but was too traumatized at the time to fully examine the contents of the document. Nonetheless, defendant NYPD officers forced Plaintiff to sign and date documents related to the warrant.
24. After approximately seven hours of illegal detention at the 25th Precinct, Plaintiff was taken to Manhattan Central Booking. There, the lawyer assigned to represent her informed her that she was being charged with possession of a controlled substance and child endangerment. Plaintiff

denied then, as she does now, ever possessing a controlled substance on her person or in her apartment.

25. To the extent that defendant NYPD officers claim that a controlled substance was found in the apartment, Plaintiff states that it was in the room of her deceased brother, who maintained a separate bedroom in the apartment. Plaintiff had no knowledge of what was in the room, and, indeed had not been in the room since her brother passed away on April 10, 2020 after contracting Covid-19. Thus, Plaintiff's brother had not been in the apartment for over seven months, rendering any information defendant NYPD officer's possessed and relied upon in furtherance of securing and executing the search warrant they allegedly possessed stale and utterly useless. Accordingly, to the extent that defendant NYPD officers did in fact have a search warrant upon entering Plaintiff's apartment, it was invalid, based on false or incomplete information, rendering their entry into Plaintiff's apartment and her subsequent arrest unlawful and not based upon reasonable suspicion or probable cause.
26. During her confinement at the 25th Precinct and Manhattan Central Booking, respectively, Plaintiff was subjected to depraved, filthy and inhumane conditions.
27. While plaintiff was incarcerated at the 25th Precinct and Manhattan Central Booking, defendants falsely and maliciously told the Manhattan County District Attorney's Office that Plaintiff had committed the crimes of Criminal Possession of a Controlled Substance in the Seventh Degree and Endangering the Welfare of a Child. Defendants knew these allegations to be false based on the lack of any material evidence that Plaintiff had committed any crime.
28. Plaintiff was released on her own recognizance at her arraignment on November 21, 2020. She made approximately four additional court appearances after her arraignment before her case was dismissed and sealed on June 3, 2021.

29. As a direct result of Plaintiff's false arrest and malicious prosecution she was illegally detained for approximately 30 hours, and lost one day of work at her job as an administrative assistant at a construction company, resulting in a loss of \$144 in wages.

FIRST CAUSE OF ACTION

ASSAULT

30. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 29 with the same force and effect as if more fully set forth herein. ^[1]_{SEP}
31. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to Plaintiff, and that such acts caused apprehension of such contact in Plaintiff. Plaintiff was assaulted by Defendant NYPD Detective Patrick Daly (Shield # 1563) and numerous P.O. John and Jane Does prior to her false and illegal arrest when said defendants pointed firearms directly at her head for a prolonged period of time with no justification.
32. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct. ^[1]_{SEP}
33. The City, as the employer of defendants is responsible for their wrongdoing under the doctrine of respondeat superior. ^[1]_{SEP}

SECOND CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

34. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 33 as if fully set forth herein.
35. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
36. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
37. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

MALICIOUS PROSECUTION

38. The plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 37 with the same force and effect as if more fully set forth at length herein.
39. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.
40. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, caused her a serious deprivation of liberty as a result, and Plaintiff obtained a favorable termination on the fabricated charges.
41. Defendants commenced and continued a criminal proceeding against Plaintiff.

42. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which she was prosecuted.
43. The prosecution and criminal proceedings terminated favorably to Plaintiff on June 3, 2021.
44. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate her state constitutional and tort rights.
45. The individually named Defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FOURTH CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

46. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.
47. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

FIFTH CAUSE OF ACTION

FAILURE TO INTERVENE

48. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.
49. Defendants had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD, subjecting Plaintiff to, *inter alia*, assault, unlawful search and seizure, detention, and malicious prosecution.

50. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
51. As a result of the foregoing, Plaintiff was subjected to assault, illegal search and undue force upon her person over the course of her false arrest.
52. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
53. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

NEGLIGENCE

54. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.
55. Defendants owed a duty of care to Plaintiff.
56. Defendants breached that duty of care by subjecting her to unjustified acts of assault, illegal search and undue force and unprivileged deprivation of her liberty without sufficient or any cause to do so.
57. As a direct and proximate cause of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
58. All of the foregoing occurred without any fault by Plaintiff.
59. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION**INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

60. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.
61. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
62. As a result of the foregoing, Plaintiff was deprived of liberty and sustained great emotional injuries.
63. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

FEDERAL CLAIMS**FIRST CLAIM FOR RELIEF****DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

64. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
65. All of the aforementioned acts of defendants NYPD DETECTIVE PATRICK DALY and NYPD OFFICERS JOHN and JANE DOE #1-12, their agents, servants, and employees, were carried out under the color of state law.

66. All of the aforementioned acts deprived Plaintiff of her rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
67. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
68. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.
69. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF

FALSE ARREST UNDER 42 U.S.C. § 1983

70. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
71. As a result of the aforesaid conduct by defendants NYPD DETECTIVE PATRICK DALY and NYPD OFFICERS JOHN and JANE DOE #1-12, Plaintiff was subjected to an illegal, improper, and false arrest by the defendants NYPD DETECTIVE PATRICK DALY and NYPD OFFICERS JOHN and JANE DOE #1-12, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

72. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, she was put in fear for her safety, and was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF

UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983

73. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
74. Plaintiff was searched by defendants NYPD DETECTIVE PATRICK DALY and NYPD OFFICERS JOHN and JANE DOE #1-12 without an individualized reasonable suspicion that Plaintiff had committed any crime or was in possession of any illicit contraband, illegal weapons, or any other illegal substances.
75. As a result of the aforesaid conduct by defendants NYPD DETECTIVE PATRICK DALY and NYPD OFFICERS JOHN and JANE DOE #1-12, Plaintiff's person was illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause to believe Plaintiff was in possession of contraband or any illegal substance as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.
76. As a result of the foregoing, Plaintiff was deprived of her Constitutional rights and has suffered mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

FOURTH CLAIM FOR RELIEF

DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983

77. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
78. Defendants NYPD DETECTIVE PATRICK DALY and NYPD OFFICERS JOHN and JANE DOE #1-12 created false evidence against the plaintiff, alleging that she committed the crimes of criminal possession of a controlled substance and endangering the welfare of a child.
79. Defendants NYPD DETECTIVE PATRICK DALY and NYPD OFFICERS JOHN and JANE DOE #1-12 forwarded false evidence and false information to prosecutors in the Manhattan County District Attorney's Office – namely, the defendants falsely informed prosecutors *inter alia*, that they alleged Plaintiff possessed a controlled substance, and committed the act of endangering the welfare of a child at the time of her arrest, when, in fact, they had no physical evidence or other reliable evidence to establish the Plaintiff had committed the aforementioned offenses, and, in fact, did not have probable cause to arrest her for said offenses.
80. Defendants NYPD DETECTIVE PATRICK DALY and NYPD OFFICERS JOHN and JANE DOE #1-12 misled the prosecutors by creating false evidence against the Plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.
81. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants NYPD DETECTIVE PATRICK DALY and NYPD OFFICERS JOHN and JANE DOE #1-12 violated Plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.
82. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, she was put in fear for his safety, and she was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FIFTH CLAIM FOR RELIEF**FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983**

83. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
84. Defendants NYPD DETECTIVE PATRICK DALY and NYPD OFFICERS JOHN and JANE DOE #1-12 had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in defendants' presence by committing the acts of assault, false arrest, unlawful imprisonment, and the misrepresentation and falsification of evidence regarding the circumstances surrounding Plaintiff's arrest throughout all phases of the criminal proceedings.
85. Defendants NYPD DETECTIVE PATRICK DALY and NYPD OFFICERS JOHN and JANE DOE #1-12 further violated Plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
86. As a result of the defendants' failure to intercede when Plaintiff's constitutional rights were being violated in defendants' presence, Plaintiff sustained, *inter alia*, emotional injuries, Plaintiff's liberty was restricted for an extended period of time, she was put in fear for her safety, and she was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

SIXTH CLAIM FOR RELIEF**MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

87. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
88. Defendants NYPD DETECTIVE PATRICK DALY and NYPD OFFICERS JOHN and JANE DOE #1-12 misrepresented and falsified evidence before the Manhattan County District Attorney,

including false allegations that Plaintiff committed any illegal acts, including criminal possession of a controlled substance and endangering the welfare of a child.

89. Defendants NYPD DETECTIVE PATRICK DALY and NYPD OFFICERS JOHN and JANE DOE #1-12 did not make a complete and full statement of facts to the District Attorney.
90. Defendants NYPD DETECTIVE PATRICK DALY and NYPD OFFICERS JOHN and JANE DOE #1-12 withheld exculpatory evidence from the District Attorney.
91. Defendants NYPD DETECTIVE PATRICK DALY and NYPD OFFICERS JOHN and JANE DOE #1-12 were directly and actively involved in the initiation of criminal proceedings against plaintiff.
92. Defendants NYPD DETECTIVE PATRICK DALY and NYPD OFFICERS JOHN and JANE DOE #1-12 lacked probable cause to initiate criminal proceedings against plaintiff.
93. Defendants NYPD DETECTIVE PATRICK DALY and NYPD OFFICERS JOHN and JANE DOE #1-12 acted with malice in initiating criminal proceedings against plaintiff.
94. Defendants NYPD DETECTIVE PATRICK DALY and NYPD OFFICERS JOHN and JANE DOE #1-12 were directly and actively involved in the continuation of criminal proceedings against plaintiff.
95. Defendants NYPD DETECTIVE PATRICK DALY and NYPD OFFICERS JOHN and JANE DOE #1-12 lacked probable cause to continue criminal proceedings against plaintiff.
96. Defendants NYPD DETECTIVE PATRICK DALY and NYPD OFFICERS JOHN and JANE DOE #1-12 acted with malice in continuing criminal proceedings against plaintiff.
97. Defendants v and NYPD OFFICERS JOHN and JANE DOE #1-12 misrepresented and falsified evidence throughout all phases of the criminal proceedings.

98. Specifically, defendants NYPD DETECTIVE PATRICK DALY and NYPD OFFICERS JOHN and JANE DOE #1-12 made the aforementioned false and misleading allegations regarding the circumstances surrounding Plaintiff's arrest.
99. Notwithstanding the perjurious and fraudulent conduct of defendants NYPD DETECTIVE PATRICK DALY and NYPD OFFICERS JOHN and JANE DOE #1-12, the criminal proceedings were terminated in Plaintiff's favor on June 3, 2021.
100. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, she was put in fear for his safety, she suffered economic damages, and she was humiliated and subjected to handcuffing and other physical restraints without probable cause.

SEVENTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

101. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
102. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
103. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
 - B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,

- C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
- D. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and
- E. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

104. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.

105. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the Plaintiff as alleged herein.

106. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the Plaintiff as alleged herein.

107. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the Plaintiff' constitutional rights.

108. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the Plaintiff' constitutional rights.

109. The acts complained of deprived the Plaintiff of her right:

- F. Not to be deprived of liberty without due process of law;
- G. To be free from seizure and arrest not based upon probable cause;
- H. Not to have summary punishment imposed upon them; and
- I. To receive equal protection under the law.

WHEREFORE, KEESHA ERBY, Plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
October 26, 2021

Respectfully submitted:

By: /s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO:
CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD DETECTIVE PATRICK DALY (Shield # 1563), Narcotic Borough Manhattan North, 1 Police Plaza, Legal Department, New York, NY 10038

ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
October 26, 2021

Sydney O'Hagan /s/
Sydney O'Hagan, Esq.